

HOUSE No. 292

The Commonwealth of Massachusetts

PRESENTED BY:

David T. Vieira

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying resolve:

Resolve establishing a special commission to review Department of Developmental Services regulations and practices.

PETITION OF:

NAME:	DISTRICT/ADDRESS:	DATE ADDED:
<i>David T. Vieira</i>	<i>3rd Barnstable</i>	<i>1/16/2025</i>
<i>John J. Marsi</i>	<i>6th Worcester</i>	<i>9/24/2025</i>

HOUSE No. 292

By Representative Vieira of Falmouth, a petition (accompanied by resolve, House, No. 292) of David T. Vieira for legislation to establish a special commission (including members of the General Court) to review Department of Developmental Services regulations and practices. Children, Families and Persons with Disabilities.

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

Resolve establishing a special commission to review Department of Developmental Services regulations and practices.

1 **Resolved**, that there shall be a special commission to review Department of
2 Developmental Services regulations and practices that diminish effective service delivery to
3 individuals with autism and intellectual developmental disabilities. The commission shall
4 investigate and study: (i) removing barriers in current regulations; (ii) achieving greater
5 efficiencies in licensing processes; (iii) the delivery of services to high-need populations; (iv)
6 transition planning for individuals with significant and unique medical needs; (v) clinical
7 regulations regarding the use of emerging technologies and the use of protective equipment; and
8 (viii) placement authority.

9 The commission shall consist of: 3 members of the senate appointed by the senate
10 president, 1 of whom shall serve as Senate Chair; 1 member appointed by the minority leader of
11 the senate; 3 members of the house of representatives appointed by the speaker of the house of
12 representatives, 1 of whom shall serve as House Chair; 1 member appointed by the minority
13 leader of the house of representatives; the President and CEO of the Association of

14 Developmental Disabilities Providers, or their designee; the President/CEO of the Providers’
15 Council, or their designee; the CEO of The Arc of Massachusetts, or their designee; 1 member
16 appointed by the Autism Commission established by chapter 226 of the acts of 2014; 1 member
17 appointed by the Permanent Commission on the Status of Persons with Disabilities established
18 by section 74 of chapter 3 of the General Laws; the Executive Director of the Massachusetts
19 Association of Approved Special Education Schools, or their designee; 1 member appointed by
20 the governor;

21 All appointments to the commission shall be made not later than December 31, 2025. The
22 commission shall hold its first meeting not later than April 15, 2025. The commission shall
23 report its findings and recommendations, including any legislation to carry out its
24 recommendations, to the clerks of the senate and house of representatives not later than
25 December 31, 2026.